

		fraud and deceit based on concealment.” (<i>Cansino v. Bank of Am.</i> (2014) 224 Cal.App.4th 1462, 1472.) The fraud claim is based on allegations that Ford concealed from Plaintiff that Plaintiff’s vehicle suffered from the “Transmission Defect.” As Ford points out, the TAC still does not allege that Plaintiff’s vehicle experienced any of the purported symptoms related to the defect, beyond the vague allegation that “Defendant's technicians inspected the Vehicle, and indicated that the transmission required attention.” The cases cited by Plaintiff are inapposite in that the plaintiffs’ vehicles in those cases each suffered from the undisclosed alleged transmission defects. <i>See Avila v. Ford Motor Co.</i> (N.D. Cal. 2026) 821 F.Supp.3d 1113, 1117 [“Avila's F-150 had a 10R80 automatic transmission, which he says had problems including “harsh shifting, clutch engagement issues, and material debris.”]; <i>Dhital v. Nissan N. Am., Inc.</i> (2022) 84 Cal.App.5th 828, 833 [“plaintiffs took the car to an authorized Nissan repair facility because of transmission problems, including stalling, jerking, and lack of power”]; <i>Ford Motor Warranty Cases</i>, (2023) 89 Cal.App.5th 1324, 1330 [“Plaintiffs experienced problems with the transmissions in their Ford Focus and Fiesta model vehicles.”]. Plaintiff has had three opportunities to amend the fraud cause of action but still has failed to state a viable claim. Accordingly, the demurrer to the fourth cause of action for fraudulent inducement – concealment is SUSTAINED without leave to amend. (<i>Heritage Pac. Fin'l, LLC v. Monroy</i> (2013) 215 Cal.App.4th 972, 994 [court did not abuse discretion in denying leave to amend where, despite ample opportunity, plaintiff failed to demonstrate it could cure defect].) Counsel for Ford shall give notice.
3	Martlaro v. American Honda Motor Company, Inc.	The Motion to Reopen Discovery, etc., filed on 4/23/26 by Defendant American Honda Motor Company, Inc. (“Honda”) is GRANTED. The Motion demonstrates that Plaintiff Samuel J. Martlaro (“Plaintiff”) designated five experts on 3/16/26, but when depositions were noticed for each, Plaintiff served substantial objections, refused to produce them as noticed, and then failed to confer when asked to do so. (Sadanaga Decl., ¶¶ 2-7, Exs. 1-12.) Plaintiff does not dispute that Honda is entitled to take the depositions of Plaintiff’s experts, and has failed to justify its conduct in failing to promptly make them available. The Motion is therefore GRANTED. Plaintiff is to make all of the designated experts available for deposition within the next 10 business days, and produce the categories of requested documents for each no later than three business days prior. <u>The parties should be prepared to set specific dates at the time of the hearing.</u> Honda’s sanctions request is GRANTED, in the amount of \$2,524. Objections to the depositions were served on March 26, 2026, but no alternative dates were offered. The following day, Honda

		requested alternative dates by email, but no response was provided. Honda again renewed its request for alternative dates by email on April 16, 2026, but still no response was provided. A telephone call regarding the matter was also unreturned. These sanctions are imposed against Plaintiff and his counsel of record, Quill & Arrow, LLP, jointly and severally, and are to be paid to Honda, through its counsel of record, within 20 days after service of notice of this ruling. Counsel for Honda is to give notice.
4	City of Garden Grove v. Weber	Before the Court at present is the "Motion to Reduce the Excessive and Unconstitutional Administrative Fines Issued by the City of Garden Grove," filed on 6/8/26 by Bradley K. Weber ("Owner"). The Motion is GRANTED IN PART, as to the \$5,600 sum identified by the City of Garden Grove ("City") for four citations issued prior to 2020, and for one \$1,600 duplicate citation, but otherwise DENIED. City has asserted in its Opposition that Owner failed to pursue the administrative remedies available to him regarding the citations he now challenges, so that the court is without jurisdiction to overturn the administrative fines he disputes here. True, exhaustion of administrative remedies does not deprive a court of subject matter jurisdiction; the exhaustion requirement may be waived and is subject to a number of exceptions. In the present case, Owner does not dispute that he failed to pursue the administrative remedies available to him, arguing instead that doing so would have been futile. But Owner has failed to show that this was so. Owner's Request for Judicial Notice, filed as ROA 406, is GRANTED as to the existence of the records under Ev. Code §§ 452(c) and (d). City is to give notice of this ruling.
5	Objective Standard Institute v. Barney et. al.	Plaintiff Objective Standard Institute move for an order sealing confidential attorney-client privileged information contained in portions of the motion to disqualify counsel, the supporting declaration of Jason Haas and exhibits D, E, G and H attached thereto. For the reasons set forth below, the motion is DENIED. "[A] reasoned decision about sealing or unsealing records cannot be made without identifying and weighing the competing interests and concerns. Such a process is impossible without (1) identifying the specific information claimed to be entitled to such treatment; (2) identifying the nature of the harm threatened by disclosure; and (3) identifying and accounting for countervailing considerations. The burden of presenting information sufficient to accomplish the first two steps is logically placed upon the party seeking the sealing of the documents, who is presumptively in the best position to know what disclosures will harm him and how. This means at a minimum that the party seeking to seal documents, or maintain them under seal, must come forward with a specific enumeration of the facts